

STATE OF NEW YORK

5448--B

2025-2026 Regular Sessions

IN ASSEMBLY

February 14, 2025

Introduced by M. of A. ROZIC, LASHER, STERN, RA, E. BROWN, NORBER, LEVENBERG, McDONALD, GLICK, HEVESI, EPSTEIN, BRAUNSTEIN, NOVAKHOV, BERGER, BORES, COLTON, LUNSFORD, CLARK, ZACCARO, PAULIN, McDONOUGH, LAVINE, WIEDER, GRIFFIN, DINOWITZ, EICHENSTEIN, BENDETT, McMAHON, SLATER, WRIGHT, SEPTIMO, BICHOTTE HERMELYN, RAMOS, TORRES, ALVAREZ, GALLAGHER, FORREST, P. CARROLL, O'PHARROW, EACHUS -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring the appointment of a Title VI coordinator at every college and university in the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 6436-a
2 to read as follows:

3 § 6436-a. Designation of a Title VI coordinator and duties. 1. Purpose
4 and designation of coordinator. (a) To ensure students are protected
5 from illegal discrimination based on characteristics, as further
6 described in applicable state and federal law, institutions shall engage
7 in proper coordination of these efforts through a centralized process
8 and with a centralized point of contact for all compliance, similar to
9 the role of the Title IX coordinator and their role in the implementa-
10 tion of applicable federal laws, rules and regulations, and state law,
11 including article one hundred twenty-nine-B of this title.

12 (b) Within ninety days of the effective date of this section, an
13 institution, defined as a college or university chartered by the regents
14 or incorporated by special act of the legislature that maintains a
15 campus in New York state shall designate a Title VI coordinator to
16 ensure compliance with Title VI of the federal civil rights act of 1964,
17 codified at 42 U.S.C. 2000d et seq., 34 C.F.R. Part 100, and any other
18 related applicable laws, rules or regulations.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 2. Responsibilities of the Title VI coordinator when receiving reports
2 of discrimination or harassment. If the Title VI coordinator receives a
3 report, the Title VI coordinator shall:

4 (a) offer supportive measures for the student or students making a
5 complaint;

6 (b) notify any students who report conduct that may reasonably consti-
7 tute discrimination or harassment under this section and Title VI of the
8 federal civil rights act of 1964, of the institution's policies and/or
9 procedures; and

10 (c) ensure there is a process for investigation and resolution of
11 complaints consistent with obligations under federal and state law.

12 3. Developing training to promote equal access and participation. The
13 division of human rights, in coordination with institutions of public
14 and private higher education located within the state, shall develop
15 model training for students and employees to ensure institutional
16 compliance. Such training or institutionally developed equivalents shall
17 be delivered annually to all students and employees commencing with the
18 first full academic year after this section shall take effect, and each
19 academic year thereafter.

20 4. Notification of policies and procedures. The Title VI coordinator
21 shall notify all students and employees each academic year of the insti-
22 tution's policies and procedures for reporting discrimination and
23 harassment.

24 (a) Form of notification. The Title VI coordinator shall ensure that
25 the annual notification includes:

26 (i) the institution's nondiscrimination policy statement;

27 (ii) website links to all policies and procedures for reporting
28 discrimination and harassment to the institution;

29 (iii) the contact information of the Title VI coordinator; and

30 (iv) any other information the Title VI coordinator and the institu-
31 tion deem necessary.

32 5. Designees. The Title VI coordinator may have a designee or desig-
33 nees to assist in carrying out the functions set forth in this section,
34 and may work with other employees to carry out the functions set forth
35 in this section, provided, however, the Title VI coordinator shall be
36 ultimately responsible for coordinating and overseeing the institution's
37 compliance with this section and with Title VI of the federal civil
38 rights act of 1964.

39 6. Training for Title VI coordinator and designee or designees. All
40 Title VI coordinators and their designees shall be trained in their
41 duties and responsibilities set forth in this section and Title VI of
42 the federal civil rights act of 1964.

43 7. Recordkeeping. (a) The Title VI coordinator shall be responsible
44 for appropriate recordkeeping related to any reports and complaints of
45 discrimination and harassment, in accordance with applicable state and
46 federal law, including all records related to assessments of reports,
47 records documenting actions the institution took to meet its obli-
48 gations, and any records of training attendance and materials.

49 8. Other duties. The Title VI coordinator may perform other relevant
50 duties as established by the institution.

51 § 2. This act shall take effect one year after it shall have become a
52 law. Effective immediately, the addition, amendment and/or repeal of any
53 rule or regulation necessary for the implementation of this act on its
54 effective date are authorized to be made and completed on or before such
55 effective date.